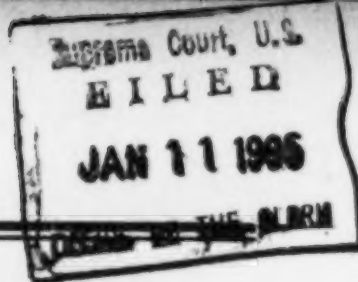


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No. 94-590



IN THE  
**Supreme Court of the United States**  
OCTOBER TERM, 1994

VERNONIA SCHOOL DISTRICT 47J,  
*Petitioner,*

v.

WAYNE and JUDY ACTON,  
guardians ad litem for JAMES ACTON,  
*Respondents.*

On Writ of Certiorari to the  
United States Court of Appeals  
for the Ninth Circuit

BRIEF OF PETITIONER  
VERNONIA SCHOOL DISTRICT 47J

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## **QUESTION PRESENTED FOR REVIEW**

Whether Vernonia School District 47J's program of drug testing middle and high school student athletes in the absence of individualized suspicion is a constitutionally reasonable "search" under the Fourth Amendment to the United States Constitution?

# STATEMENT PURSUANT TO RULE 29.1

Petitioner is not a corporation and has no parent companies, subsidiaries or affiliates.

## TABLE OF CONTENTS

|                                                                                                   | Page |
|---------------------------------------------------------------------------------------------------|------|
| QUESTION PRESENTED FOR REVIEW .....                                                               | i    |
| STATEMENT PURSUANT TO RULE 29.1 .....                                                             | ii   |
| TABLE OF AUTHORITIES .....                                                                        | vi   |
| OPINIONS BELOW .....                                                                              | 1    |
| JURISDICTION .....                                                                                | 2    |
| CONSTITUTIONAL PROVISION INVOLVED .....                                                           | 2    |
| STATEMENT OF THE CASE .....                                                                       | 2    |
| A. Record Evidence                                                                                |      |
| 1. The Community of Vernonia and the Role of Interscholastic Athletics .....                      | 3    |
| 2. The History of Drug and Disciplinary Problems Within the District Generally .....              | 4    |
| 3. The History of Drug and Disciplinary Problems Among Student Athletes in Particular..           | 6    |
| 4. The District's Attempts to Reduce Drug Use Prior to Adopting and Implementing the Policy ..... | 8    |
| 5. The District's Drug Testing Policy .....                                                       | 9    |
| 6. Drug and Disciplinary Problems After the Policy .....                                          | 12   |
| B. Trial Court Proceedings .....                                                                  | 12   |
| C. Ruling of the Court of Appeals .....                                                           | 14   |
| SUMMARY OF ARGUMENT .....                                                                         | 14   |
| ARGUMENT .....                                                                                    | 17   |
| I. THE DISTRICT'S DRUG TESTING PROGRAM IS A CONSTITUTIONALLY REASONABLE SEARCH .....              | 17   |

## TABLE OF CONTENTS—Continued

|                                                                                                                                                                                                                                | Page |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|
| A. This Court Has Long Recognized Qualitative Differences Between the Constitutional Remedies to Which Students and Adults Are Entitled. In the School Setting, Students' Constitutional Rights Are Diminished .....           | 17   |
| B. This Court Also Treats the School Setting Differently for Purposes of Searches Under the Fourth Amendment, and Holds That Searches in the School Setting Are Reasonable in the Absence of a Warrant or Probable Cause ..... | 21   |
| C. Individualized Suspicion Is Not an Essential Element of Reasonableness for Searches by School Authorities; Rather, It Should Be Treated as One of the Factors Considered in the Reasonableness Analysis .....               | 23   |
| 1. There are recognized exceptions to the requirement of individualized suspicion....                                                                                                                                          | 23   |
| 2. Individualized suspicion is not essential to the reasonableness of a search in the school setting .....                                                                                                                     | 27   |
| D. The District's Drug Test Policy Satisfies the <i>New Jersey v. T.L.O.</i> "Reasonableness" Test Because It Was Justified at Its Inception.....                                                                              | 28   |
| 1. The drug problem in the District's schools was severe and the District had an obligation to solve it .....                                                                                                                  | 28   |
| 2. The District should not be subject to a "compelling governmental interest" standard .....                                                                                                                                   | 32   |
| 3. The District had a compelling interest in solving the drug problem in its schools....                                                                                                                                       | 33   |
| 4. The Policy was justified at its inception because the District tried every reasonable alternative .....                                                                                                                     | 35   |

## TABLE OF CONTENTS—Continued

|                                                                                                                                                                                                                              | Page |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|
| 5. The Policy was justified at its inception because it is very difficult to develop reasonable suspicion of drug intoxication absent testing .....                                                                          | 36   |
| 6. The Policy adequately restricts government discretion .....                                                                                                                                                               | 37   |
| 7. The Policy involved a minimal intrusion on the students' privacy .....                                                                                                                                                    | 39   |
| a. The school setting results in diminished expectations of privacy .....                                                                                                                                                    | 39   |
| b. The nature of interscholastic athletics further reduces a student's expectation of privacy .....                                                                                                                          | 40   |
| c. A student athlete's expectation of privacy is diminished even further because the Policy applies only to those who <i>voluntarily</i> engage in interscholastic athletics .....                                           | 42   |
| d. The Policy itself minimizes the intrusion .....                                                                                                                                                                           | 44   |
| E. The District's Drug Test Policy Satisfies the <i>New Jersey v. T.L.O.</i> "Reasonableness" Test Because It Was Reasonably Related in Scope to the Circumstances Which Justified the Interference in the First Place ..... | 45   |
| 1. Drug testing by urinalysis is reasonably related to the District's objectives of deterring drug use and avoiding injury.....                                                                                              | 46   |
| 2. The Policy is not excessively intrusive....                                                                                                                                                                               | 48   |
| CONCLUSION .....                                                                                                                                                                                                             | 50   |

## TABLE OF AUTHORITIES

| Cases                                                                                                         | Page           |
|---------------------------------------------------------------------------------------------------------------|----------------|
| <i>Almeida-Sanchez v. United States</i> , 413 U.S. 266 (1973).....                                            | 24             |
| <i>Ambach v. Norwick</i> , 441 U.S. 68 (1979) .....                                                           | 18             |
| <i>Bell v. Wolfish</i> , 441 U.S. 520 (1979) .....                                                            | 17, 48         |
| <i>Bethel School Dist. No. 403 v. Fraser</i> , 478 U.S. 675 (1986) .....                                      | 18, 20         |
| <i>Board of Education, Island Trees Union Free School District No. 26 v. PICO</i> , 457 U.S. 853 (1982) ..... | 20             |
| <i>Brown v. Board of Education of Topeka</i> , 347 U.S. 483 (1953) .....                                      | 18, 33         |
| <i>Camara v. Municipal Court</i> , 387 U.S. 523 (1967) ..                                                     | 24             |
| <i>Delaware v. Prouse</i> , 440 U.S. 648 (1979) .....                                                         | 24, 26         |
| <i>Dimeo v. Griffin</i> , 943 F.2d 679 (7th Cir. 1991) .....                                                  | 27             |
| <i>Donovan v. Dewey</i> , 452 U.S. 594 (1981) .....                                                           | 24, 25, 38, 47 |
| <i>Elkins v. United States</i> , 364 U.S. 206 (1960) .....                                                    | 17             |
| <i>Epperson v. State of Arkansas</i> , 393 U.S. 97 (1968) .....                                               | 19             |
| <i>Frank v. Maryland</i> , 359 U.S. 360 (1959) .....                                                          | 24             |
| <i>Goss v. Lopez</i> , 419 U.S. 565 (1975) .....                                                              | 14, 19         |
| <i>Griffin v. Wisconsin</i> , 483 U.S. 868 (1987) .....                                                       | 22             |
| <i>Hazelwood School District v. Kuhlmeier</i> , 484 U.S. 260 (1988) .....                                     | 20             |
| <i>Hill v. National Collegiate Athletic Association</i> , 865 P.2d 633 (Cal. 1994) .....                      | 27             |
| <i>Ingraham v. Wright</i> , 430 U.S. 651 (1977) .....                                                         | 15, 19, 20     |
| <i>Marshall v. Barlow's Inc.</i> , 436 U.S. 307 (1978) .....                                                  | 25             |
| <i>Michigan State Police v. Sitz</i> , 496 U.S. 444 (1990) ..                                                 | 26, 36         |
| <i>Moulé v. Paradise Valley School District No. 69</i> , 863 F.Supp. 1098 (D. Ariz. 1994) .....               | 27             |
| <i>NCAA v. Board of Regents of Univ. of Okla.</i> , 468 U.S. 85 (1984) .....                                  | 29             |
| <i>National Treasury Employees Union v. Von Raab</i> , 489 U.S. 656 (1989) .....                              | passim         |
| <i>New Jersey v. T.L.O.</i> , 469 U.S. 325 (1985) .....                                                       | passim         |
| <i>New York v. Burger</i> , 482 U.S. 691 (1987) ...                                                           | 15, 25, 38, 47 |
| <i>O'Connor v. Ortega</i> , 480 U.S. 709 (1987) .....                                                         | 15, 22, 25     |

## TABLE OF AUTHORITIES—Continued

|                                                                                                                                                   | Page               |
|---------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| <i>O'Halloran v. University of Washington</i> , 679 F.Supp. 997 (W.D. Wash.), <i>rev'd on other grounds</i> , 856 F.2d 1375 (9th Cir. 1988) ..... | 27                 |
| <i>Schaill by Kross v. Tippecanoe County School Corp.</i> , 864 F.2d 1309 (7th Cir. 1988) <i>reh'g denied</i> (1989) .....                        | 26, 27, 41, 46     |
| <i>See v. Seattle</i> , 387 U.S. 541 (1967) .....                                                                                                 | 24                 |
| <i>Shoemaker v. Handel</i> , 795 F.2d 1136 (3rd Cir. 1986) .....                                                                                  | 27                 |
| <i>Skinner v. Railway Labor Exec. Assn.</i> , 489 U.S. 602 (1989) .....                                                                           | passim             |
| <i>Terry v. Ohio</i> , 392 U.S. 1 (1968) .....                                                                                                    | 17, 26             |
| <i>Tinker v. Des Moines Community School Dist.</i> , 393 U.S. 503 (1969) .....                                                                    | 19, 20, 21         |
| <i>United States v. Ortiz</i> , 422 U.S. 891 (1975) .....                                                                                         | 45                 |
| <i>United States v. Biswell</i> , 406 U.S. 311 (1972) ...                                                                                         | 25, 38, 43, 44, 47 |
| <i>United States v. Edwards</i> , 498 F.2d 496 (2nd Cir. 1974) .....                                                                              | 44                 |
| <i>United States v. Martinez-Fuerte</i> , 428 U.S. 543 (1976) .....                                                                               | passim             |
| <i>University of Colorado v. Derdeyn</i> , 863 P.2d 929 (Colo. 1993) .....                                                                        | 27                 |
| <i>Wyman v. James</i> , 400 U.S. 309 (1971) .....                                                                                                 | 17, 43, 44         |
| <i>Statutes</i>                                                                                                                                   |                    |
| 20 U.S.C. § 1232 .....                                                                                                                            | 7                  |
| 28 U.S.C. § 1254 .....                                                                                                                            | 2                  |
| 28 U.S.C. § 1331 .....                                                                                                                            | 13                 |
| 28 U.S.C. § 1367 .....                                                                                                                            | 13                 |
| O.R.S. 336.195 .....                                                                                                                              | 7                  |
| <i>Constitutions</i>                                                                                                                              |                    |
| OR. CONST. Art. I, § 9 .....                                                                                                                      | 13, 14             |
| U.S. CONST. amend. I .....                                                                                                                        | 20                 |
| U.S. CONST. amend. IV .....                                                                                                                       | passim             |
| U.S. CONST. amend. VIII .....                                                                                                                     | 15, 20             |
| U.S. CONST. amend. XIV .....                                                                                                                      | 13, 17             |

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**On Writ of Certiorari to the  
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**BRIEF OF PETITIONER  
VERNONIA SCHOOL DISTRICT 47J**

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**OPINIONS BELOW**

The opinion of the United States Court of Appeals for the Ninth Circuit is reported at 23 F.3d 1514 (9th Cir. 1994) and is included in Appendix A to the Petition for a Writ of Certiorari at pages 1a through 75a. The court of appeals' order denying the Vernonia School District's petition for rehearing and rejecting its suggestion for rehearing *en banc* is found in Appendix C to the Petition for a Writ of Certiorari at pages 143a through 144a. The opinion of the United States District Court for the District of Oregon is reported at 796 F.Supp. 1354 (D.Or. 1992) and is included in Appendix B to the Petition for a Writ of Certiorari at pages 76a through 142a.

## JURISDICTION

The jurisdiction of this Court to review the judgment and opinion of the court of appeals is by writ of certiorari pursuant to 28 U.S.C. § 1254(1). The opinion and judgment of the court of appeals were filed on May 5, 1994. (Pet. App. A). Petitioner's timely petition for rehearing and suggestion for rehearing *en banc* was denied on July 8, 1994. (Pet. App. C). Petitioner filed its Petition for a Writ of Certiorari on September 30, 1994. This Court granted the Writ of Certiorari on November 28, 1994.

## CONSTITUTIONAL PROVISION INVOLVED

The Fourth Amendment of the United States Constitution provides:

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be secured, and the persons or things to be seized.

## STATEMENT OF THE CASE

This case arises from the adoption and implementation by Vernonia School District 47J (the "District") of the Student Athlete Drug Policy (the "Policy") allowing the District to conduct urinalysis testing of its elementary and high school student athletes without individualized suspicion. The District did not allow James Acton, a seventh grade student at the District's Washington Grade School, to participate in interscholastic football when he and his parents declined to sign the Policy's consent form required of all interscholastic athletic participants. The parents, as guardians ad litem for James Acton (the "Actons"), initiated this action against the District seeking injunctive and declaratory relief from enforcement of the Policy.

## A. Record Evidence

### 1. *The Community of Vernonia and the Role of Interscholastic Athletics.*

Vernonia, Oregon is a small, isolated logging community of approximately 3,000 residents. (J.A. 19; R. 102).<sup>1</sup> The District employs 42 faculty members and consists of one high school and three grade schools with total enrollment of approximately 690 students. (Pl.Ex. 5 at 5-6). Because of its size and location, the town has few recreational opportunities or organized entertainment programs for elementary and high school students. (J.A. 19-20; R. 102). As a result, community life in general centers around the schools, with interscholastic athletics playing a dominant role. (J.A. 20; R. 101-102). Given the importance of athletics, student athletes are admired within the District's schools and the community. (J.A. 20, 37).

The District offers football, basketball, track, cross country and volleyball starting at the seventh grade level, and wrestling and golf starting at the ninth grade level. (J.A. 43, 64; Pl.Ex. 5 at 6). Between 60 to 65 percent of high school students and approximately 75 percent of elementary students participate in interscholastic athletics. (J.A. 20, 37).

Participation in interscholastic athletic programs is voluntary. (J.A. 33). The District, however, places numerous restrictions on eligibility for its athletic programs. In addition to satisfying the requirements of the Policy, all

<sup>1</sup> References to the Joint Appendix are denoted as "J.A."; references to the trial transcript are denoted as "R."; and references to the Appendix to the Petition for a Writ of Certiorari are denoted as "Pet. App." All exhibits referred to in Petitioner's brief were received by Order of the district court on April 28, 1992. (J.A. 1). Because no written transcript of the Order was made, reference to Plaintiffs' and Defendant's trial exhibits are denoted as "Pl.Ex." and "Def.Ex.", respectively, followed by the exhibit number and the page number of the exhibit, if any, on which the cited material appears.

students must have a physical examination, proper insurance and written parental consent to participation. (R. 61-62; Pl.Ex. 2 at 30).<sup>2</sup> All athletes must enroll in a minimum number of credited subjects and maintain passing grades in all subjects or lose athletic eligibility for the following nine weeks, with no appeal of such eligibility. (Pl.Ex. 2 at 30). With limited exceptions, all student athletes are required to attend all classes on the day of a practice or contest to participate and must travel to and from contests with the team under the direct supervision of the team's coach. *Id.* In addition, all athletes must comply with any rules of conduct established by the coach and athletic director, including rules related to dress, training hours and related matters. (R. 61-62; Pl.Ex. 2 at 30).

## **2. The History of Drug and Disciplinary Problems Within the District Generally.<sup>3</sup>**

Prior to the early 1980s, District schools experienced few disciplinary problems. Drug use was confined to a small "fringe" element of the school population which was generally looked down upon by other students. (J.A. 21). The District prided itself on the lack of a drug problem and its students were considered well behaved. *Id.* A sense of school spirit pervaded the schools. (J.A. 53). During this time, the District experienced only minor disciplinary problems. (J.A. 21). "Disciplinary

<sup>2</sup> James Acton testified that prior to trying out for the football team he underwent a physical examination, which included producing a urine sample. (J.A. 17-18).

<sup>3</sup> The evidence of drug and disciplinary problems in the District was based primarily on first-hand observations of District officials, reports received by District officials from teachers, parents and students, and student conversations which were overheard by District officials. To the extent the evidence was not based on a trial witness' first-hand observation, the testimony was subject to a continuing hearsay objection raised by Respondents. Where such objection was not sustained, evidence not based on personal observation was admitted to show that the District was reasonable in its belief that a drug problem existed. (R. 143-146).

referrals" averaged approximately 40 to 50 a year, with no strong disciplinary problems reported. *Id.*<sup>4</sup>

In the mid-to-late 1980s, however, the District perceived an increase in the use of drugs and alcohol by its students. (J.A. 20-22, 40, 46-47, 53-54). Students were observed sharing and smoking marijuana at a small restaurant near the high school. (J.A. 39-40). Drug paraphernalia, such as marijuana pipes, was confiscated on school grounds. (J.A. 22-23). On one occasion, students admitted to a school official that they had used marijuana. (J.A. 22-24). In classrooms, hallways and at sporting events, teachers overheard students boast about their drug and alcohol use and the fact that school officials could do nothing to prevent it. (J.A. 21, 39-42, 47-48, 54).

The increase in drug and alcohol use coincided with a decline in classroom decorum and an increase in disciplinary problems. Between 1988 and 1989 the number of disciplinary referrals more than doubled from those in the early 1980s to approximately 100 to 110, including several expulsions. (J.A. 21-22). Teachers experienced outbursts of profane language during class, and rude and obscene statements directed at other students. (J.A. 46-48, 59-61). Teachers and administrators felt helpless as students increasingly expressed their attraction to, and vocal defense of, drug use. (J.A. 21-22, 40-41, 45-48). One teacher, who had never experienced classroom discipline problems in the past, considered leaving the profession after 15 years of service because of her frustration in dealing with this new situation. (J.A. 50). Other teachers stated that the blatancy with which students talked about their drug use resulted in hostility and a power struggle between the students and teachers. (J.A. 40, 48).

<sup>4</sup> In a "disciplinary referral," a teacher completes a referral form which states that a student's behavior is unacceptable and describes the particular behavior. (J.A. 41). The form is given to the student, who signs a rebuttal or comment with regard to the discipline. *Id.* It is then sent to the school's principal for appropriate disciplinary action. *Id.*

### 3. The History of Drug and Disciplinary Problems Among Student Athletes in Particular.

School officials also perceived that the leading student athletes were actively involved with the school-wide drug problem and that drug and alcohol use pervaded the District's athletic programs. (J.A. 24-25, 40-41, 53-54, 59-60, 84). School officials knew of several instances of drug and alcohol use by student athletes. For example, five of the high school's best athletes cut classes to hold a party and were arrested for drinking alcohol and using marijuana. (J.A. 49-50, 63-64). On one occasion athletes admitted to a District principal that they had used drugs. (J.A. 22-24). A District coach stated that once athletic seasons were over and student athletes thought the coach no longer had authority over them, the athletes talked about having been "blasted" during the season. (J.A. 54). Athletes were also caught consuming alcohol on a bus trip after a game. *Id.* Other athletes stole alcohol from a store after a track meet. *Id.*

The District also received reports of drug use within the athletic program from teachers, parents and students. Parents learned of drug use on a football trip. (J.A. 53). Four players admitted to the high school football coach that they had used amphetamines. (J.A. 21-23; Pl.Ex. 3 at 1). In addition, "organizations" composed largely of athletes began to form. (J.A. 40, 59-60). Athletes in one such group, called "The Drug Cartel," submitted essays as class assignments glorifying drug use. (J.A. 48). The groups' behavior was typified by certain calling cards such as "head butting" and loud "bugling" calls. (J.A. 40-41, 48).

The District was particularly concerned about the effects of drug use by student athletes because of the risk of serious injuries drug use posed to athletes. (J.A. 24-25, 61-62). During the mid-to-late 1980s the District noticed an increase in the number and severity of injuries to its athletes. (J.A. 39). For example, the high school football and wrestling coach suspected that drug use at an out of town wrestling match contributed to a severe

sternum injury of a wrestler who failed to execute a basic maneuver. (J.A. 54-56). The wrestler lost the normal function of his arms for several months. (J.A. 55). When the coach visited the student's hotel room the day after the injury, the smell of marijuana permeated the area.<sup>5</sup> *Id.* The coach also suspected that drug use affected certain football players, because players at times ignored or forgot well-drilled safety routines and failed to react in a normal manner. (J.A. 56). He expressed a concern that drug use would slow down athletes' reaction time, making them more susceptible to injury. (J.A. 56, 62). He was concerned that drug use would mask the pain of an injury, causing an athlete to continue to play and the injury to worsen. (J.A. 61). The coach also feared that an injured athlete might, for example, be taken to a hospital, refuse to admit that he or she used "speed" and have a harmful reaction to a prescribed pain killer. *Id.*<sup>6</sup>

<sup>5</sup> The Actons' interrogatory No. 1 and the District's response are as follows:

INTERROGATORY NO. 1: Has any student been injured while under the influence of drugs in participating in a district-sponsored athletic event? (For each injury, please identify the student who was injured, the date of injury, the sport in which the injury occurred, and the name of the coach who was supervising the sport at the time of the injury?) [sic]

RESPONSE: The District has reason to believe that a student was injured while under the influence of drugs while participating in a District-sponsored athletic event, although this was not confirmed through tests. This incident occurred in February 1989 in a wrestling match under Coach Ron Svensen. The student name will not be released as it would result in a violation of the Family Education and Privacy Rights Act (20 U.S.C. § 1232g and ORS 336.195).

(J.A. 79).

<sup>6</sup> The teacher's testimony in this regard was corroborated by the District's expert witness, Robert L. DuPont, M.D., who testified that student athletes who use drugs, particularly middle- and high-school athletes, face a "substantially greater risk" of injury. (J.A. 70-72).

Dr. DuPont is a psychiatrist specializing in drug abuse and treatment. (Def. Ex. 106 at 6). He was the first director of the

#### 4. *The District's Attempts to Reduce Drug Use Prior to Adopting and Implementing the Policy.*

The District attempted to deter drug and alcohol use through education. Special classes and presentations were held on the effects and addictive nature of drugs. (J.A. 25, 49, 63; R. 61). The District also spent several thousands of dollars to employ well-known speakers to address students on the dangers of drug use. (J.A. 25-26). The Vernonia City Council, after being approached by the District, hired a policeman for two weeks to patrol areas near the high school to deter drug use. (J.A. 22, 25, 34-35).

These efforts failed to achieve any significant impact on the disruptive atmosphere in the District's schools. (J.A. 25-26, 34-35, 49-50, 65-66). For example, the arrests of the five athletes referred to above occurred the day after the presentation of a student play directed at the dangers of drug use. (J.A. 49-50, 63-64). By 1989, District officials considered adopting a drug testing policy. (J.A. 26-27; R. 31-32). According to a District principal, such a policy was the only alternative other than "massive expulsions." (J.A. 26-27; R. 32).

The District investigated possible drug testing programs. (J.A. 26-27; R. 30-32). The District had previously refused to adopt any drug testing program, choosing instead to exhaust other alternatives. (J.A. 27). The District studied testing programs of other school districts and obtained legal opinions regarding such programs. (J.A. 58-59; R. 33-35). The District administration recommended implementation of the Policy after a parent "input night" was held on the topic and the parents in attendance unanimously approved the Policy. (R. 32-33). The School Board approved the Policy for implementation in the fall of 1989. (R. 35-36).

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National Institute on Drug Abuse and the second White House "drug czar." *Id.* He was president of the American Council for Drug Education for several years and has been a clinical professor of psychiatry at Georgetown University since 1980. (Def. Ex. 106 at 7).

#### 5. *The District's Drug Testing Policy.*

The purpose of the Policy is non-punitive. (J.A. 7, 27-28). It was designed as a preventative program to keep athletes from using drugs, to protect their health and safety, and to provide drug users with assistance programs. (J.A. 7, 27-28, 32). An earlier version of the Policy covered all students who participated in extracurricular activities, but the Policy involved in this case was limited to interscholastic athletics to assure its legality. (J.A. 29-30).

The Policy provides for testing by urinalysis for amphetamines, marijuana and cocaine. (Pl.Ex. 5 at 17; Def.Ex. 109). The Policy does not test for steroids or alcohol. (J.A. 85-86). Other drugs, such as LSD, are only tested for at the request of the District because of the high costs of testing for such drugs. (Pl.Ex. 5 at 17).<sup>7</sup> The identity of a student, however, does not determine the drugs tested for. (Pl.Ex. 5 at 17). To avoid sanctions for a "positive test," students must identify any prescription medications they are taking by providing a copy of the prescription or a doctor's authorization. (J.A. 8).

All students who participate in interscholastic athletics are tested at the beginning of the athletic season. (J.A. 8, 30-31). The student and his or her parents are required to sign a written form consenting to the testing if the student chooses to participate in interscholastic sports. (J.A. 10-11, 16-17; R. 8, Pl.Ex. 5 at 25-26). During the athletic season, athletes are tested randomly. (J.A. 8, 30-31; Pl.Ex. 5 at 20). Once a week, the names of all athletes competing during the particular season are placed in a "pool." (J.A. 30-31; Pl.Ex. 5 at 20). A student draws from the "pool" the names of ten percent of the athletes, who are then tested. Two adult witnesses observe the selection. (J.A. 30-31). The student drawing the names is unaware of who is selected. *Id.* The students

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<sup>7</sup> The cost of the basic test performed by the District is approximately \$15. (Pl.Ex. 5 at 23-24).

selected are notified and tested that same day, if possible. (J.A. 31). Testing may occur before or after school, during breaks in class or during class, if the student is permitted to leave. *Id.* The drawn names then go back into the "pool." (Pl.Ex. 5 at 20-21).

A student begins the test by completing a specimen control form which assigns the student a number. (J.A. 42; R. 38). The student then enters an empty locker room with a monitor, who is a male school official for the boys and a female official for the girls. (R. 38). The monitor then opens a packet containing a cup and vial and provides the student with the cup. *Id.*

Each boy selected produces a sample at a urinal, remaining fully clothed with his back to the monitor who is approximately 12 to 15 feet behind the student. (R. 39-40, 138). Although the monitor is in the same room as the male student to assure that no tampering occurs, the monitor is not required to, and does not routinely, watch the student while he produces the sample. (J.A. 31-32; R. 138-139). In fact, the monitor for high school boys testified that he did not stare at the boys while they produced the sample. (R. 138-139). At no time are the students' genitals observable by the monitor. (J.A. 28, 42; R. 124). The monitor can, however, hear the normal sounds of urination. (J.A. 31-32, 64). The procedure for girls differs only in that the sample is produced in an enclosed bathroom stall such that the monitor can hear but not observe the students. (J.A. 42). If a student is unable to produce a sample, he or she is allowed to leave and return when capable of doing so. (J.A. 32). After the sample is produced, it is given to the monitor who transfers the sample to a vial. (R. 38, 40, 124; Pl.Ex. 5 at 22). The entire procedure takes approximately five minutes. (J.A. 31).

The samples are sent to an independent testing laboratory which performs a screening and confirmation procedure which tests for amphetamines, cocaine and marijuana. (Pl.Ex. 5 at 17, 24; Def.Ex. 109; Stip. Test. of

R. Velander at 6).<sup>8</sup> The laboratory's procedures are 99.94% accurate. (Stip. Test. of R. Velander at 8). The laboratory personnel trained school officials in implementing and monitoring the testing. (R. 37-38, 124; Stip. Test. of M. Pederson at 3). The District follows strict procedures regarding the chain of custody and access to test results.<sup>9</sup>

The laboratory may only report test results to District personnel authorized to receive the results and requires such personnel to recite a code number to ensure they are so authorized. (Stip. Test. of R. Velander). Test results are first reported to the District superintendent by telephone from the laboratory. (Pl.Ex. at 5 at 22; Stip. Test. of R. Velander). The laboratory is only authorized to mail written reports to the superintendent. (Stip. Test. of R. Velander at 8). The only officials who have access to test results are the superintendent, the District principals and vice-principals, and the District athletic directors. (J.A. 29; Pl.Ex. 5 at 22-23). The records are not kept for more than one year. (Pl.Ex. 5 at 23).

If a tested sample shows the presence of drugs, a second test is administered as soon as possible to confirm the result. (J.A. 8, 32). If the second test is negative, no further action is taken. *Id.* If the second test is positive, the athlete's parents are notified. *Id.* A District principal then conducts a due process hearing with the student and his or her parents where the student is given the option of: (a) participation in an assistance program and weekly urinalysis for six weeks; or (b) suspension from athletics for the remainder of the current season and next athletic

<sup>8</sup> The parties at trial stipulated to the admissibility of the expert witness statement of Robert Velander, the clinical chemist and systems manager of the laboratory, regarding the laboratory's testing procedures and the reporting of test results.

<sup>9</sup> The student signs and dates the security tape which seals the vial. The vial is assigned a number coinciding with the student's number on the specimen control form. (R. 38; Pl.Ex. 5 at 22). It is then placed in a plastic bag which the student also signs and dates. (R. 38).

season. (J.A. 9, 32). The student is then re-tested prior to the start of the next athletic season for which he or she is eligible. *Id.* A second offense results in a suspension from participation in athletics for the remainder of the current athletic season and the next season for which the athlete is eligible. (J.A. 9).<sup>10</sup> After the third offense, a student is suspended from athletics for the remainder of the current season and the next two athletic seasons. (J.A. 9, 33).<sup>11</sup>

#### 6. *Drug and Disciplinary Problems After the Policy.*

After adoption of the Policy, District officials noticed a marked change in the problems they had experienced prior to the Policy. (J.A. 41, 50; R. 43-45, 137). Overall, the number of referrals in the year in which the Policy was adopted dropped from approximately 100 to approximately 50. (R. 43). In addition, one athletic director testified that the number of athletic injuries reported to her office decreased after the Policy was adopted. (R. 76). As the court of appeals found: "[e]very teacher that testified noticed an improvement in discipline, a reduction in disciplinary referrals, and a decrease in drug use and the glorification of the drug culture" since the policy was implemented. 23 F.2d at 1522 (Pet. App. A at 34a; J.A. 41, 50-51; R. 43-44, 137). One teacher also noticed an increase in students' grades. (R. 137).

#### B. Trial Court Proceedings

This case was initiated in 1991 when Wayne and Judy Acton, as guardians ad litem for James Acton, filed a complaint for declaratory and injunctive relief from en-

<sup>10</sup> Although not stated specifically in the Policy, a District principal testified that after a second offense a student is not automatically suspended from participating but may continue to participate if he or she participates in an assistance program and agrees to weekly testing. (J.A. 32-34).

<sup>11</sup> The superintendent testified that two confirmed positive tests occurred while the Policy was effective. (J.A. 38, 83).

forcement of the Policy. The Complaint alleged that the District's refusal to allow James Acton to participate in the District-sponsored athletic program violated the Fourth and Fourteenth Amendments to the United States Constitution and Article I, Section 9 of the Oregon Constitution. (J.A. 5).<sup>12</sup> The district court had jurisdiction over the Fourth Amendment claim under 28 U.S.C. § 1331 and supplemental jurisdiction over the Oregon constitutional claim under 28 U.S.C. § 1367(a). 23 F.3d at 1517 (Pet. App. A at 10a).

After trial to the court, the district court ruled that the Policy did not violate either the United States or Oregon constitutions, entered an order denying the claims for injunctive and declaratory relief and entered a judgment dismissing the action. 796 F.Supp. at 1368 (Pet. App. 8 at 142a; J.A. 14-15).

Applying a balancing test which weighed James Acton's right to privacy against the District's interest in adopting the program, the court found that the testing program was reasonable. 796 F.Supp. at 1365 (Pet. App. B at 125a). Specifically, the court found that the school demonstrated a "compelling need" for the program. This need was supported by the following factors: (1) that coaches observed unsafe performance by athletes who were under the influence of intoxicants; (2) that District athletes were role models in the community such that deterring their drug use would deter other students' use; (3) that the District considered and unsuccessfully tried several alternative methods of addressing the drug problem before instituting the Policy; (4) that the Policy was limited in scope and narrowly tailored to effectuate the District's objectives; (5) that the District took significant steps to limit the extent of intrusion, such as assuring the confidentiality of results, not disclosing results to criminal

<sup>12</sup> The Actons also alleged that the District lacked statutory authority to adopt and enforce the Policy. (J.A. 5). The district court, however, held that the District had the requisite authority. 796 F. Supp. at 1367 (Pet.App. B at 137a).

authorities, and not using results for suspensions, expulsions or other school disciplinary proceedings; (6) that coaches and school administrators could exercise no discretion under the Policy; and (7) that the Policy was implemented at the middle and high school level where courts should accord deference to school administrators "in matters concerning discipline and maintaining order." 796 F.Supp. at 1363-1365 (Pet. App. B at 115a-125a).

### C. Ruling of the Court of Appeals

The Actons appealed to the United States Court of Appeals for the Ninth Circuit which reversed the judgment of the district court and held that the Policy violated the Fourth Amendment as well as Article I, Section 9 of the Oregon Constitution. 23 F.3d at 1526 (Pet. App. A at 59a-60a). The court of appeals found that the district court's findings of fact were not clearly erroneous. 23 F.3d at 1519 (Pet. App. at A at 20a). On the merits, the court of appeals applied a balancing test. It first found that the student athletes' right to privacy was not minimal. 23 F.3d at 1525 (Pet. App. A at 51a-56a). It then concluded that, although the District's interests in preventing unnecessary athletic injuries, reducing the attraction of drugs among other students and improving discipline were "worthy goals," they were not the kind of "exereme dangers and hazards" involved in prior cases which authorized random urinalysis testing. 23 F.3d at 1526 (Pet. App. A at 56a-57a). The court concluded that the District's interest was not "compelling enough" to support such testing. 23 F.3d at 1526 (Pet. App. A at 58a).

### SUMMARY OF ARGUMENT

The District's drug testing policy (the "Policy"), requiring students who choose to participate in interscholastic athletics to submit to suspicionless urinalysis, does not violate the Fourth Amendment. The special nature of the school setting has led this Court to hold that certain constitutional rights must be reduced for students. See, e.g., *Goss v. Lopez*, 419 U.S. 565, 582

(1975) (due process); *Ingraham v. Wright*, 430 U.S. 651, 681-682 (1977) (Eighth Amendment). In particular, while students have Fourth Amendment rights in the school setting, those rights are diminished at least to the extent that schools may conduct reasonable searches of students without a warrant or probable cause. *New Jersey v. T.L.O.*, 469 U.S. 325, 340-341 (1985). The issue presented in this case is whether drug testing of student athletes can be reasonable under the Fourth Amendment in the absence of individualized suspicion.

In other cases the Court has found, as it did in the school setting, that neither a warrant nor probable cause is necessary. See, e.g., *O'Connor v. Ortega*, 480 U.S. 709, 722, 725 (public employees); *United States v. Martinez-Fuerte*, 428 U.S. 543, 546 (1976) (border checkpoints). In some of those cases the Court has gone on to hold that searches were reasonable despite the absence of individualized suspicion. See, e.g., *Skinner v. Railway Labor Exec. Assn.*, 489 U.S. 602, 633 (1989); *National Treasury Employees Union v. Von Raab*, 489 U.S. 656, 679 (1989); *Martinez* at 559-562; *New York v. Burger*, 482 U.S. 691, 700-701 (1987). In those cases, the Court has balanced: (1) the governmental interest in the search; (2) the intrusion on reasonable expectations of privacy; (3) the control on government discretion in conducting the search; and (4) the effectiveness of the search. See, e.g., *Martinez*, 428 U.S. at 559; *Burger*, 482 U.S. at 702. Because the school setting requires deference to the judgment of school officials and protection of the educational environment, *Ingraham v. Wright*, 430 U.S. 651, 681-682 (1977), this flexible standard should also be applied in the school setting and individualized suspicion should not be an essential element of reasonableness for a school search.

Balancing these four factors in this case reveals that the Policy was reasonable and, therefore, constitutional. First, the District had a compelling interest in protecting the

safety of its student athletes and the educational atmosphere of its schools from a pervasive drug problem. Before implementing the Policy the District attempted to stem the drug problem with education and counseling but achieved no discernible reduction in the problem. Second, the Policy adequately restricted or eliminated governmental discretion because it mandated truly random testing and followed an unvarying protocol. Third, the Policy was only a minimal intrusion on the student athletes' reasonable expectations of privacy because students, and especially athletes, are already subject to substantial regulation in the school environment, some of which—like the Policy—are reasonable and necessary safety regulations. Interscholastic sports involve substantial additional intrusions on a student's privacy. Finally, the decision to play sports is entirely voluntary—if a student does not want to be subject to the Policy he or she can opt not to play sports.

The Policy was effective in achieving its purpose. In addition to detecting drug use, drug testing has deterred drug use and thus has met the District's objectives of reducing drug use by student athletes, and, through their example, the entire school population. After the Policy was implemented there was a substantial improvement in school order and discipline.

## ARGUMENT

The Fourth Amendment of the United States Constitution, "by virtue of the Fourteenth Amendment, prohibits unreasonable searches and seizures by state officers." *Elkins v. United States*, 364 U.S. 206, 213 (1960). The test of reasonableness "is not capable of precise definition or mechanical application." *Bell v. Wolfish*, 441 U.S. 520, 559 (1979). Instead, "[t]he specific content and incidents of this right must be shaped by the context in which it is asserted." *Wyman v. James*, 400 U.S. 309, 318 (1971) quoting *Terry v. Ohio*, 392 U.S. at 1, 9 (1968). "The determination of the standard of reasonableness . . . requires 'balancing the need to search against the invasion which the search entails.'" *New Jersey v. T.L.O.*, 469 U.S. at 325, 337 (1985) (citation omitted). The question presented in this case is whether the urine tests performed on student athletes by the Vernonia School District (the "District"), in the absence of individualized suspicion, are reasonable searches under the Fourth Amendment.<sup>13</sup>

### I. THE DISTRICT'S DRUG TESTING PROGRAM IS A CONSTITUTIONALLY REASONABLE SEARCH

#### A. This Court Has Long Recognized Qualitative Differences Between the Constitutional Remedies to Which Students and Adults Are Entitled. In the School Setting, Students' Constitutional Rights Are Diminished.

Before examining the reasonableness of the District's drug test policy (the "Policy") under the Fourth Amendment, it is important to emphasize the special nature of

<sup>13</sup> Public school authorities who conduct searches of their students are state actors subject to the limits of the Fourth Amendment. *New Jersey v. T.L.O.*, 469 U.S. at 336-337. Because the collection and testing of urine intrudes upon expectations of privacy that society recognizes as reasonable, urine tests are searches proscribed by the Fourth Amendment. *Skinner v. Railway Labor Exec. Assn.*, 489 U.S. 602, 617 (1989).

the public school environment. This Court has traditionally recognized the unique and important role that public schools play in our society. First, public schools are primarily responsible for the education and training of young people and education "is perhaps the most important function of state and local governments." *Brown v. Board of Education of Topeka*, 347 U.S. 483, 493 (1953). Public education, like the police function, "'fulfill[s] a most fundamental obligation of government to its constituency.'" *Ambach v. Norwick*, 441 U.S. 68, 74 (1979). The state, therefore, has a "compelling interest" in educating and training its young people. *New Jersey v. T.L.O.*, 469 U.S. at 350 (Powell, J., concurring).

Second, public schools are entrusted with the difficult task of preparing students for citizenship. As is noted in *Bethel School Dist. No. 403 v. Fraser*, 478 U.S. 675, 681 (1986):

"[P]ublic education must prepare pupils for citizenship in the Republic. . . . It must inculcate the habits and manners of civility as values in themselves conducive to happiness and as indispensable to the practice of self-government in the community and the nation." (citations omitted).

Third, this Court recognizes the substantial interest in maintaining discipline in the classroom and on school grounds and its importance for the education process. *New Jersey v. T.L.O.*, 469 U.S. at 339. The Court in *New Jersey v. T.L.O.* noted that in recent years:

[S]chool disorder has often taken particularly ugly forms: drug use and violent crime in the schools have become major social problems. *See generally* 1 NIE, U.S. Dept. of Health, Education and Welfare. Violent Schools—Safe Schools: The Safe School Study Report to the Congress (1978). Even in schools that have been spared the most severe disciplinary problems, the preservation of order and a proper educational environment requires close supervision

of schoolchildren, as well as the enforcement of rules against conduct that would be perfectly permissible if undertaken by an adult.

*Id.* "Without first establishing discipline and maintaining order, teachers cannot begin to educate their students." 469 U.S. at 350 (Powell, J., concurring).

Finally, it is important for the courts to defer, whenever possible, to decisions local school authorities make concerning education and maintenance of school discipline. In *Ingraham v. Wright*, 430 U.S. 651, 681-682 (1977), the Court held:

Assessment of the need for, and the appropriate means of maintaining, school discipline is committed generally to the discretion of school authorities subject to state law.

In *Epperson v. State of Arkansas*, 393 U.S. 97, 104 (1968), the Court held:

By and large, public education in our Nation is committed to the control of state and local authorities. Courts do not and cannot intervene in the resolution of conflicts which arise in the daily operation of school systems and which do not directly and sharply implicate basic constitutional values.

Similarly, this Court "emphasized the need for affirming the comprehensive authority of the States and of school officials . . . to prescribe and control conduct in the schools." *Tinker v. Des Moines Community School Dist.*, 393 U.S. 503, 507 (1969).

As a result of the unique nature of public education, the Court has consistently recognized some reduction in the constitutional rights of students. Thus, in *Goss v. Lopez*, 419 U.S. 565 (1975), the Court acknowledged a student's constitutional right to due process following a disciplinary suspension, but limited that right only to notice and a "rudimentary" hearing. 419 U.S. at 582.

Similarly, in *Ingraham*, the Court declined to extend the Eighth Amendment to prohibit the use of corporal punishment of schoolchildren. In so holding, the Court stated:

Imposing additional administrative safeguards as a constitutional requirement might reduce that risk [of violating a student's substantive rights] marginally, but would also entail a significant intrusion into an area of primary educational responsibility.

430 U.S. at 682.

Students' First Amendment rights are also significantly reduced. School officials may prohibit the use of lewd and inappropriate speech by students and may impose disciplinary sanctions for speech which disrupts the educational process. *Bethel School Dist. No. 403 v. Fraser*, 478 U.S. 675, 685 (1986). School officials may also impose reasonable restrictions on the style and content of school newspapers published by journalism students, "so long as their actions are reasonably related to legitimate pedagogical concerns." *Hazelwood School District v. Kuhlmeier*, 484 U.S. 260, 273 (1988). Such a standard "is consistent with [the Court's] oft-expressed view that the education of the Nation's youth is primarily the responsibility of parents, teachers, and state and local school officials, and not of federal judges." 484 U.S. at 273 (citations omitted).

In *Board of Education, Island Trees Union Free School District No. 26 v. PICO*, 457 U.S. 853 (1982), the Court held that public school boards possess significant authority to determine which books are appropriate for school libraries. School boards may remove certain books from libraries so long as the removal decision "was based solely upon the 'educational suitability' of the books in question. . . ." 457 U.S. at 871.

Similarly, in *Tinker v. Des Moines Independent Community School Dist.*, 393 U.S. 503 (1969), which is fre-

quently cited for the proposition that students do not "shed their constitutional rights . . . at the schoolhouse gate," 393 U.S. at 506, the Court held:

[C]onduct by the student, in class or out of it, which for any reason—whether it stems from time, place, or type of behavior—materially disrupts classwork or involves substantial disorder or invasion of the rights of others is, of course, not immunized by the constitutional guarantee of freedom of speech.

393 U.S. at 513.

In these cases the Court consistently gives deference to legitimate pedagogical concerns and the requirements of appropriate discipline in the operation of the school, and concomitantly reduces the constitutional rights that students can demand in the school setting.

**B. This Court Also Treats the School Setting Differently for Purposes of Searches Under the Fourth Amendment, and Holds That Searches in the School Setting Are Reasonable in the Absence of a Warrant or Probable Cause.**

"The fundamental command of the Fourth Amendment is that searches and seizures be reasonable . . . ." *New Jersey v. T.L.O.*, 469 U.S. at 340. "[W]hat is reasonable depends on the context within which a search takes place." 469 U.S. at 337. In *T.L.O.*, this Court held that in the school setting students' Fourth Amendment protections are diminished. 469 U.S. at 340.

In *T.L.O.*, a school official searched a student's purse based on reasonable suspicion that she had been smoking on school grounds, in violation of school rules. After noting that the opening of the student's purse was "undoubtedly a severe violation of subjective expectations of privacy," 469 U.S. at 338, the Court balanced the legitimate expectations of privacy<sup>14</sup> against "the substantial

<sup>14</sup> The Court did not hold that students have expectations of privacy identical to those of adults. It held only that students have

interest of teachers and administrators in maintaining discipline in the classroom and on school grounds." 469 U.S. at 339. In doing so, the Court recognized that maintaining security and order in schools requires "a certain degree of flexibility in school disciplinary procedures" and "some easing of the restrictions to which searches by public authorities are ordinarily subject." 469 U.S. at 340. The Court also recognized the "value of preserving the informality of the student-teacher relationship." 469 U.S. at 340. The student-teacher relationship, unlike the relationship between law enforcement officers and criminal suspects, is rarely adversarial. 469 U.S. at 349-350 (Powell, J., concurring).

Balancing the students' expectations of privacy against the teachers' and administrators' interest in maintaining discipline, the Court held that school searches do not require either a warrant or probable cause to be reasonable under the Fourth Amendment.<sup>15</sup> 469 U.S. at 340-341. Thus, the absence of a warrant or probable cause for suspecting that James Acton was taking drugs does not render the drug testing program at issue in this case unconstitutional.

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some legitimate expectations of privacy. A concurrence by Justice Powell, with whom Justice O'Connor joined, noted that: "In any realistic sense, students within the school environment have a lesser expectation of privacy than members of the population generally." 469 U.S. at 348.

<sup>15</sup> Exceptions to the warrant and probable cause requirement have also been found in other cases where "'special needs, beyond the normal need for law enforcement, make the warrant and probable-cause requirement impracticable.'" *Griffin v. Wisconsin*, 483 U.S. 868, 873 (1987), citing *New Jersey v. T.L.O.*, 469 U.S. at 351 (Blackmun, J., concurring in the judgment). In *Griffin v. Wisconsin*, the Court held that a warrant and probable cause were not necessary in the search of a probationer's home. 483 U.S. at 876, 878. See also, *O'Connor v. Ortega*, 480 U.S. 709, 722, 725 (1987) (reaching a similar conclusion about the search of a public employee).

The Court in *T.L.O.* stated the test for "the legality of a search of a student" as follows:

[T]he legality of a search of a student should depend simply on the reasonableness, under all the circumstances, of the search. Determining the reasonableness of any search involves a twofold inquiry: first, one must consider "whether the . . . action was justified at its inception," . . . second, one must determine whether the search as actually conducted "was reasonably related in scope to the circumstances which justified the interference in the first place." . . .

469 U.S. at 341 (citations omitted). This is the test which applies to the District's drug testing program.

The Court, however, left open the question of whether a school search can be "justified at its inception" without individualized suspicion. 469 U.S. at 342 n.8. The Court stated further that, "the Fourth Amendment imposes no irreducible requirement of such suspicion." *Id.* Because the drug tests performed by the District are not based on individualized suspicion, this case squarely presents the question left open in *T.L.O.*

**C. Individualized Suspicion Is Not an Essential Element of Reasonableness for Searches by School Authorities; Rather, It Should Be Treated as One of the Factors Considered in the Reasonableness Analysis.**

**1. There are recognized exceptions to the requirement of individualized suspicion.**

This Court has recognized exceptions to the general requirement of individualized suspicion in cases similar to *T.L.O.* where a warrant and probable cause are not required. "Exceptions to the requirement of individualized suspicion are generally appropriate only where the privacy interests implicated by a search are minimal and where 'other safeguards' are available 'to assure that the individual's reasonable expectation of privacy is not 'subject to

the discretion of the official in the field." " *New Jersey v. T.L.O.*, 469 U.S. at 342 n.8 quoting *Delaware v. Prouse*, 440 U.S. 648, 654-655 (1979). As the discussion below shows, the drug tests performed by the District do not offend the Fourth Amendment, because, as in all other cases where suspicionless searches have been upheld, the privacy intrusion is minimal and the testing program adequately restricts the District's discretion.

This Court upheld warrantless, suspicionless searches in the form of border checkpoint stops in *United States v. Martinez-Fuerte*, 428 U.S. 543 (1976). At border checkpoints, all vehicles were slowed to a virtual halt as officers searched them visually. 428 U.S. at 546. The Court found that the checkpoint stops were reasonable under the Fourth Amendment by balancing the following factors: 1) the substantial government interest in secure borders; 2) the impracticality of a reasonable suspicion requirement; 3) the minimal intrusion on privacy interests; and 4) the minimal discretion on the part of the officers.<sup>16</sup> 428 U.S. at 559-562.

This Court also upheld searches in the absence of a warrant and individualized suspicion in several cases in which the searches were administrative in nature.<sup>17</sup> These cases involve searches of commercial premises of businesses operating in closely regulated industries.<sup>18</sup> Close

<sup>16</sup> Earlier, in *Almeida-Sanchez v. United States*, 413 U.S. 266 (1973), this Court rejected searches conducted by roving border patrols in the absence of a warrant or probable cause.

<sup>17</sup> Before 1967, the Fourth Amendment was not applied to administrative searches. See, e.g., *Frank v. Maryland*, 359 U.S. 360 (1959). But in that year, this Court held in *Camara v. Municipal Court*, 387 U.S. 523, 534 (1967), and *See v. Seattle*, 387 U.S. 541, 543 (1967), that the Fourth Amendment applies to searches of businesses or homes made outside the criminal context.

<sup>18</sup> Originally, the administrative exception applied only to industries with a history of heavy government regulation. Later the category was expanded to include industries that are simply heavily regulated. *Donovan v. Dewey*, 452 U.S. 594, 606 (1981).

government regulation diminishes the business owner's expectation of privacy to a minimal level. *New York v. Burger*, 482 U.S. 691, 700-701 (1987). The Court has applied a test in the administrative search cases similar to that in *Martinez-Fuerte*. In addition to taking place in an industry with a diminished expectation of privacy due to heavy regulation, the inspection must be made under a regulatory scheme informed by a substantial government interest, the inspection must be necessary to further that scheme, and finally, the inspection program must be certain and regular enough to provide a constitutionally adequate substitute for a warrant. *New York v. Burger*, 482 U.S. at 702 (warrantless, suspicionless search of junkyard for stolen autos and auto parts upheld). See also, *United States v. Biswell*, 406 U.S. 311, 317 (1972) (warrantless, suspicionless search of federally licensed firearms dealer upheld); *Donovan v. Dewey*, 452 U.S. 594, 605 (1981) (warrantless, suspicionless search of hard rock mine conducted pursuant to Federal Mine Safety and Health Act upheld).<sup>19</sup>

Warrantless, suspicionless searches have also been upheld in public employment cases. See, *Skinner v. Railway Labor Exec. Assn.*, 489 U.S. 602 (1989), and *National Treasury Employees Union v. Von Raab*, 489 U.S. 656 (1989).<sup>20</sup> In these cases, suspicionless drug tests by urin-

<sup>19</sup> In contrast, where control on the discretion of government health and safety inspectors was inadequate and searches were of any business in interstate commerce, this Court has held warrantless searches unconstitutional. *Marshall v. Barlow's Inc.*, 436 U.S. 307, 314, 323 (1978).

<sup>20</sup> Prior to *Skinner* and *Von Raab*, the Court held in *O'Connor v. Ortega*, 480 U.S. 709, 722, 725 (1987), that employer searches of public employees for legitimate work-related, non-investigatory reasons as well as to investigate work-related misconduct are in the category of "special needs" cases in which no warrant or probable cause is required. As in *T.L.O.*, the Court noted in *O'Connor* that it was not deciding whether the reasonableness test it adopted applied in the absence of individualized suspicion. 480 U.S. at 726. The Court subsequently answered that question affirmatively in *Skinner* and *Von Raab*.

alysis of public employees were upheld as reasonable because of the governmental interest in railroad safety, *Skinner*, 489 U.S. at 628-629, and in the safety and integrity of the Customs Service drug interdiction efforts, *Von Raab*, 489 U.S. at 670, the minimal intrusion on privacy, *Skinner*, 489 U.S. at 624; *Von Raab*, 489 U.S. at 661-672, the lack of government discretion in administering the tests, *Skinner*, 489 U.S. at 622; *Von Raab*, 489 U.S. at 667, and the close and substantial relation of the testing programs to the goal of deterring drug use, *Skinner*, 489 U.S. at 632; *Von Raab*, 489 U.S. at 675-676.

In *Michigan State Police v. Sitz*, 496 U.S. 444 (1990), this Court upheld the constitutionality of suspicionless searches at highway sobriety checkpoints. The Court balanced the state's interest in preventing drunk driving, the extent to which the sobriety checkpoints could reasonably be said to advance that interest, and the degree of intrusion on the motorists. 496 U.S. at 455. In addition, the Court considered the fact that the checkpoint guidelines minimized the discretion of the officers in the field. 496 U.S. at 453.<sup>21</sup>

*Schall by Kross v. Tippecanoe County School Corp.*, 864 F.2d 1309 (7th Cir. 1988), *rehg. denied* (1989) is the only case other than this one in which a federal appellate court has evaluated the reasonableness of suspicionless drug testing by urinalysis limited to high school athletes. Applying the four factors from the suspicionless search cases discussed above, the court found that a high school athlete's privacy in the act of urination is significantly diminished, that the school's interest in preventing

<sup>21</sup> In *Delaware v. Prouse*, 440 U.S. 648, 661 (1979), the Court held that *roving* stops to check drivers for license and registration conducted with neither "an appropriate factual basis for suspicion directed at a particular automobile nor upon some other substantial and objective standard or rule to govern the exercise of discretion 'would invite intrusions upon constitutionally guaranteed rights based on nothing more substantial than inarticulate hunches. . . .'" 440 U.S. at 661 quoting *Terry v. Ohio*, 392 U.S. 1, 22 (1968).

drug abuse by athletes was substantial, that drug testing by urinalysis is an effective deterrent and that the policy adequately controlled government discretion. 864 F.2d at 1318-1322.<sup>22</sup>

**2. Individualized suspicion is not essential to the reasonableness of a search in the school setting.**

In *T.L.O.*, the Court noted that suspicionless searches usually are upheld only where the privacy interests at stake are minimal and government discretion is adequately restricted. 469 U.S. at 342 n.8. This Court has indeed considered these two factors time and again, along with the importance of the government's purpose and the effectiveness of the search in carrying out that purpose, in upholding the reasonableness of suspicionless searches.

No reasonable distinction can be drawn between the school setting and the other contexts in which suspicionless searches have been upheld that would justify prevent-

<sup>22</sup> Lower courts have also upheld random, suspicionless testing of athletes in other contexts. For example, in *Dimeo v. Griffin*, 943 F.2d 679 (7th Cir. 1991), the Seventh Circuit upheld testing of horse racing jockeys and other personnel. In finding such testing reasonable, Judge Posner stated that the "incremental loss of privacy" caused by such testing was "slight" given that those tested were already subject to complete medical examinations requiring urine samples. 943 F.2d at 683. See also, *Shoemaker v. Handel*, 795 F.2d 1136, 1142 (3rd Cir. 1986) (daily, random selection of jockeys for urinalysis did not violate Fourth Amendment where those tested were subject to "pervasive regulation" thus reducing their expectation of privacy and where state had "strong" interest in conducting the unannounced search); *O'Halloran v. University of Washington*, 679 F.Supp. 997 (W.D. Wash.), *rev'd on other grounds*, 856 F.2d 1375 (9th Cir. 1988) (applying two-part test of *T.L.O.* in upholding National Collegiate Athletic Association's random urinalysis testing of participants in NCAA-sponsored events); *Hill v. National Collegiate Athletic Association*, 865 P.2d 633 (Cal. 1994) (random urinalysis testing of college athletes did not violate state constitutional right to privacy); *But see, Moulé v. Paradise Valley Unified School District No. 69*, 863 F.Supp. 1098 (D. Ariz. 1994) (decided on the basis of the court of appeals' decision in the instant case); *University of Colorado v. Derdeyn*, 863 P.2d 929 (Colo. 1993).

ing schools from conducting suspicionless searches assuming these four factors are met. In fact, as discussed above, the school setting is truly unique. This Court has consistently deferred to the judgment of school administrators about the best methods for handling disciplinary problems. More importantly, this Court has repeatedly recognized the fundamental role of schools in protecting young people and creating responsible citizens.

Schools need the flexibility to apply every reasonable approach to solve the complex problems they face. To hold that individualized suspicion is an essential element of a school search, and not simply a factor to be weighed in the balancing test, would give students greater rights than adult public employees or business owners in regulated industries, a result which *T.L.O.* and the other cases in the school setting do not support.

**D. The District's Drug Test Policy Satisfies the *New Jersey v. T.L.O.* "Reasonableness" Test Because It Was Justified at Its Inception.**

The first prong of the *T.L.O.* reasonableness test—that the search was “justified at its inception”—is met in this case because there is a minimal intrusion on student privacy and the Policy restricts the District's discretion. When those factors are considered along with the District's significant interest, the difficulty of detecting drug use and the alternatives tried by the District, it is clear that the Policy in this case was “justified at its inception.”

**1. The drug problem in the District's schools was severe and the District had an obligation to solve it.**

As is described in detail in the Statement of the Case, District officials were faced with a crisis in the classroom and in the sports program which they reasonably concluded was caused by significant drug abuse. (J.A. 24-25, 40-41, 53-54, 59-60, 84). The ability of the Vernonia teachers to educate their students was seriously impaired. Students demonstrated exceptional hostility and

defiance, creating an unprecedented “power struggle” between students and faculty. (J.A. 40, 48). The district court's finding that the District was at “its wits end” was not an exaggeration. 796 F.Supp. at 1357 (Pet. App. B at 86a).<sup>23</sup> One experienced teacher was almost driven to retirement by the situation. (J.A. 50). The administration and teachers foresaw the need for mass expulsions.<sup>24</sup> (J.A. 26-27; R. 32).

<sup>23</sup> At every stage of this case, the Actons have vigorously contested the facts, especially whether the District elicited sufficient “proof” of a drug problem in the schools generally and among student athletes specifically. This Court should note, however, that the district court specifically found that the glamorization and use of drugs and alcohol became more “blatant,” that drug use invaded the sports program and that the leading student athletes were also the leaders of the drug activity, thus endangering “the very center of activity of the school and the community.” 796 F.Supp. at 1357 (Pet. App. B at 81a, 83a-84a). It further found that the evidence at trial “amply demonstrate[d] that the administration was at its wits end and that a large segment of the student body, particularly those involved in interscholastic athletics, was in a state of rebellion.” *Id.*, (Pet. App. B at 85a-86a). The district court found that this rebellion “was being fueled by alcohol and drug abuse as well as the students' misperceptions about the drug culture.” *Id.*, (Pet. App. B at 86a). The circuit court could find no clear error in the district court's findings. 23 F.3d at 1519 (Pet. App. A at 18a-21a). This Court generally gives “great weight” to such concurrent findings of fact. *NCAA v. Board of Regents of Univ. of Okla.*, 468 U.S. 85, 98 n.15 (1984).

<sup>24</sup> The District introduced into evidence a United States Department of Education publication entitled, *What Works, SCHOOLS WITHOUT DRUGS*, United States Department of Education, Lauro F. Cavazo, Secretary (1989), which noted:

Drugs not only transform schools into marketplaces for dope deals, they also lead to the destruction of property and to classroom disorder. Among high school seniors, heavy drug users were more than three times as likely to vandalize school property and twice as likely to have been involved in a fight at school or at work as nonusers. Students on drugs create a climate of apathy, disruption, and disrespect for others. . . . A drug-ridden environment is a strong deterrent to learning not only for drug users but for other students as well.

(Def. Ex. 105 at 11).

It was reasonable for the District faculty and administration, who observed that athletes were role models for the school community generally and also were among those who defiantly glorified drug use, to be concerned about the safety of those athletes on the playing field. (J.A. 20-22, 24-25, 40-41, 45-48, 61-62). Although no Vernonia student was subpoenaed by the District and asked to admit under oath to using drugs during athletic events, Vernonia coaches had good reason to believe that their athletes were doing so. (J.A. 39, 54-56).

The wrestling and football coach testified to a strong suspicion that a state-class wrestler was under the influence of drugs when he was seriously injured during a match. (J.A. 54-56). That coach also observed highly unusual behavior on the football field, in which players ignored or apparently forgot well-drilled safety maneuvers and failed to react in a normal manner. (J.A. 56). The coach was concerned that drug use would slow reaction time, making athletes more susceptible to injury. (J.A. 56, 62). In addition, athletes were arrested for using drugs at a party which took place during school hours. (J.A. 49-50, 63-64). Teachers, administrators and coaches all testified that they were gravely concerned about the well-being of their students in the classroom and the safety of their student athletes in practice and competition. (J.A. 21-22, 24-25, 61-62).

The testimony of the District's expert, Robert L. DuPont, M.D., confirmed the validity of these fears. Athletes under the influence of drugs face a "substantially greater risk" of injury to themselves and others than those who are not drug impaired. (J.A. 68-70). Studies show that drug use begins between the ages of 12 and 20 and that "the most intense period for drug use initiation" is between the 7th and 9th grades. (Def. Ex. 106 at 30-31). The largest number of sports injuries occurs at the middle and high school levels. (J.A. 71). Drugs lead people to take risks, to be careless and impulsive and to disregard instructions. (J.A. 70). Drug impairment re-

sults in distraction, difficulty judging time and distance properly, memory impairment and a dulling of the sensation of pain. (J.A. 73). "A lot of energy is devoted to training athletes how to avoid injury to themselves and other people . . . on the playing field" and "[d]rug use takes away the protections that exist, not only for the individual himself, but for the other people with whom he shares that practice field." (J.A. 71).<sup>25</sup>

Justice Blackmun noted in his concurrence in *T.L.O.*: "Government has a heightened obligation to safeguard students whom it compels to attend schools." 469 U.S. at 353. Based upon the record in this case, it is fair to say that in seeking to satisfy that heightened obligation it would have been unreasonable for the District to *have refrained from* instituting the drug testing program. The administration, teachers and coaches, entrusted with the responsibility to solve this problem and using their best, well-informed judgment, concluded that drug testing was the only reasonable response to a crisis in their schools. This is exactly the type of decision where courts should defer to the judgment of the educators involved.

<sup>25</sup> Adolescents are particularly vulnerable to the effects of drugs. Drugs threaten normal development in a number of ways:

- Drugs can interfere with memory, sensation, and perception. They distort experiences and cause a loss of self-control that can lead users to harm themselves and others.
- Drugs interfere with the brain's ability to take in, sort, and synthesize information. As a result, sensory information runs together, providing new sensations while blocking normal ability to understand the information received.
- Drugs can have an insidious effect on perception; for example, cocaine and amphetamines often give users a false sense of functioning at their best while on the drug.

*What Works, SCHOOLS WITHOUT DRUGS*, United States Department of Education, Lauro F. Cavazo, Secretary (1989) (Def. Ex. 105 at 9).

**2. The District should not be subject to a "compelling governmental interest" standard.**

Both the district court and court of appeals applied *Skinner* and *Von Raab* to this case and held that those cases require a "compelling interest" as a prerequisite to upholding a search in the absence of individualized suspicion. 23 F.3d at 1826 (Pet. App. A at 58a); 796 F.Supp. at 1360-1361 (Pet. App. B at 102a-103a). Any standard set in *Skinner* and *Von Raab* does not control this case because those cases were not decided in the school context. The unique nature of the school setting calls for "easing" of Fourth Amendment requirements, "flexibility" and "common sense" in applying those requirements, and reasonable deference to the judgment of school administrators. *T.L.O.*, 469 U.S. at 340, 342-343. The governmental purpose in the school setting, therefore, need not be as strong as in other settings.

Moreover, *Skinner* and *Von Raab* do not establish a "compelling" governmental interest standard for suspicionless searches. Although this Court found the interests of the employers in *Skinner* and *Von Raab* to be "compelling," it did not state that a "compelling" interest was required to justify a suspicionless search. 489 U.S. at 633; 489 U.S. at 679. There are several references to lesser interests throughout those opinions. The Court referred to the requisite interest as "important,"<sup>26</sup> "substantial,"<sup>27</sup> and "valid."<sup>28</sup>

*Skinner* and *Von Raab*, like the other suspicionless search cases, require a balancing process. The central question is whether the governmental interest outweighs the privacy interest. The required level of governmental interest naturally varies with the extent of the privacy intrusion. Requiring a specific level of governmental

<sup>26</sup> *Skinner*, 489 U.S. at 624.

<sup>27</sup> *Von Raab*, 489 U.S. at 666, 675.

<sup>28</sup> *Von Raab*, 489 U.S. at 671.

interest would be inconsistent with this Court's emphasis on balancing the governmental interest against the invasion of privacy in determining what is reasonable under the Fourth Amendment. *T.L.O.*, 469 U.S. at 337.

**3. The District had a compelling interest in solving the drug problem in its schools.**

Even if this Court were to hold that *Skinner* and *Von Raab* govern in the school setting, and that those cases require a "compelling" governmental interest as a prerequisite to a suspicionless school search, the District meets that standard here. The state has a "compelling interest" in educating and training its young people. *T.L.O.*, 469 U.S. at 350 (Powell, J., concurring). "Education 'is perhaps the most important function' of government, *Brown v. Board of Education*, 347 U.S. 483, 493, and the government has a heightened obligation to safeguard students whom it compels to attend school." *T.L.O.*, 469 U.S. at 353 (Blackmun, J., concurring).

In contrast to *Von Raab*, where there was no evidence of actual drug use, 489 U.S. at 660, there is substantial and convincing evidence in this record of a drug problem which threatened safety and discipline. The question will undoubtedly arise whether the problems of a small rural school district can begin to rival the evidence in *Skinner* of drug abuse on a national level by railroad personnel or the risk in *Von Raab* that our nation's borders may be open to illegal drug trafficking. The answer is that drug abuse such as that the District sought to address is every bit as significant as the problems in *Skinner* and *Von Raab*.

In *Von Raab*, this Court was influenced by the fact that: "The Customs Service is our nation's first line of defense against one of the greatest problems affecting the health and welfare of our population." 489 U.S. at 668. Certainly the next line of defense must be preventing drug use by children, when they are most vulnerable to the

physical and psychological effects of drugs. Indeed, it is difficult to make a qualitative distinction in terms of drug abuse prevention between the importance of keeping drugs out of this country and the importance of deterring our children from abusing drugs at a time when they are most vulnerable to addiction. (R. 43; Def.Ex. 106 at 30-32, 42).

The court of appeals interpreted "compelling" governmental interest as requiring the risk of "some additional horrible event, some terrible threat to society that can flow from the presence of drugs—some shooting, some explosion, some crash of train, truck or aircraft, or some breach of top secret national security." 23 F.3d at 1526 (Pet. App. A at 58a). This is far too narrow an interpretation. It incorrectly assumes that dramatic events which result in immediate physical injury are more serious than less tangible, but arguably far more significant, long-term injuries, such as those which result when schools fail in their educational mission. In fact, the drug problem in the Vernonia schools and drug use by children generally is a "horrible event" which does pose a "terrible threat to society." It has immediate effects on the students, teachers, parents and community involved. More importantly, to the extent it inevitably interferes with the teachers' ability to instill knowledge and the values essential to citizenship, it will have even more profound, long-term consequences on society. A myopic view of what is sufficiently "compelling" to justify drug testing which focuses on near-term, physical injuries ignores these crucial facts.

Our public school officials are also responsible for the safety of their students. By requiring the threat of some serious physical injury caused by a catastrophic event, the circuit court's holding could either prevent schools from demonstrating a "compelling interest" altogether, or, at least, prevent schools from dealing with serious threats to safety until a traumatic injury or death occurs. By then, of course, it is too late, and the school district is

potentially subject to liability for failure to take reasonable steps to prevent a known risk of harm. School officials should be allowed to take reasonable and necessary steps to prevent serious injuries before they occur.

The court of appeals' narrow definition of "compelling" would make random drug testing—widely acknowledged to be an important tool in detecting and deterring drug use—available only to a select few. In *Skinner*, this Court relied on evidence that drug testing is sometimes the only effective means of detecting and deterring drug use. 489 U.S. at 628 (J.A. 67). In many cases only those with the ability to drug test will be able to deal effectively with drug abuse. A holding that would make what is in some cases the only tool to deal with drug abuse available to prevent shootings and train wrecks but not available to solve a serious drug problem in a school would be wholly unreasonable. It would also be very difficult to square such a holding with this Court's long-standing commitment to making it possible for teachers and administrators to maintain safety, discipline and order in the classroom.

**4. *The Policy was justified at its inception because the District tried every reasonable alternative.***

The District tried many other less-intrusive means of dealing with the drug problem before implementing the Policy. These included conducting special classes and seminars on drug abuse, hiring well-known speakers to discuss the danger of drug abuse and presenting theatrical productions on the subject. (J.A. 25-26, 49, 63; R. 61). These efforts appeared to have no significant impact on the disruptive atmosphere. (J.A. 25-26, 34-35, 49-50, 65-66). The efforts taken by the District show that the drug testing program was undertaken with great deliberation. (J.A. 27).

The Actons have argued that the District could have tried yet other, additional measures to meet the drug and

disciplinary problem before implementing the testing program. The respondents in *Skinner* made a similar argument, and this Court responded that the reasonableness of the government's choice "does not necessarily or invariably turn on the existence of alternative 'less intrusive' means." 489 U.S. at 629 n.9. The Court declined to second guess the conclusions made by the government after years of study. 489 U.S. at 629. See also, *Michigan State Police v. Sitz*, 496 U.S. at 454, (choice among reasonable alternatives left to government officials, "who have a unique understanding of, and a responsibility for, limited public resources . . .")

**5. The Policy was justified at its inception because it is very difficult to develop reasonable suspicion of drug intoxication absent testing.**

Student drug impairment is difficult to reliably detect by observation or other means less intrusive than drug testing. As this Court recognized in *Skinner*, "[a]n impaired employee, . . . will seldom display any outward 'signs detectable by the lay person or, in many cases, even the physician.'" 489 U.S. at 628, citing 50 Fed. Reg. 31526 (1985). In this case Dr. DuPont testified that even if school officials were specially trained, they would miss "more than 90 percent of the impairment caused by drugs and alcohol." (J.A. 67). The extent to which drug or alcohol intoxication is outwardly visible depends to a great extent on how much experience the person has with the particular drug. People who have relatively little experience with the drug may look quite impaired from a single dose, but their tolerance to the behavioral effects grows with more exposure to the drug and it becomes very difficult to tell whether the person has used the drug. (Def. Ex. 106 at 34-36, 77). Adolescents are known "for giving a lot of behavior, including

mood swings and unpredictability" so it is especially difficult to detect drug impairment of adolescents. (J.A. 67).

A dangerous or illegal act which usually cannot be detected through observation will almost inevitably go undetected if individualized suspicion is required. This Court recognized this problem in *United States v. Martinez-Fuerte*, 428 U.S. 543 (1976), upholding suspicionless stops of vehicles at permanent checkpoints for brief questioning of occupants. Reasonable suspicion would be "impractical because the flow of traffic tends to be too heavy to allow the particularized study of a given car that would enable it to be identified as a possible carrier of illegal aliens." 428 U.S. at 557. The Court was particularly concerned that well-disguised smugglers would not be deterred if individualized suspicion were required. *Id.* Drug impairment of athletes presents an analogous problem. Teachers and coaches cannot reliably detect drug intoxication by observation. (J.A. 67). A requirement of individualized suspicion in this context would largely eliminate any hope of reliably identifying drug use by student athletes.

**6. The Policy adequately restricts government discretion.**

In *New Jersey v. T.L.O.*, the Court noted that, "[e]xceptions to the requirement of individualized suspicion are generally appropriate only where the privacy interests implicated by a search are minimal and where 'other safeguards' are available to 'assure that the individual's reasonable expectation of privacy is not 'subject to the discretion of the official in the field.'" 469 U.S. at 342 n.8 (citation omitted) (emphasis added). In this case the drug testing program leaves no discretion in school officials.<sup>29</sup> The court of appeals so found. 23 F.3d at 1522. (Pet. App. A at 37a).

<sup>29</sup> Testing is initially required of all athletes and then is conducted on a lottery basis throughout the season. Athletes are selected weekly for testing. Those students are chosen randomly

This Court considered the lack of any discretion vested in officials responsible for conducting a search a significant factor in upholding the warrantless, suspicionless searches in *New York v. Burger*, 482 U.S. at 711; *United States v. Biswell*, 406 U.S. at 316; *Donovan v. Dewey*, 452 U.S. at 603-604; *United States v. Martinez-Fuerte*, 428 U.S. at 559; *Skinner*, 489 U.S. at 622; and *Von Raab*, 489 U.S. at 667.

For example in *New York v. Burger*, the Court relied in particular on the following aspects of the search at issue, which are analogous to the District's testing program:

The statute informs the [person to be searched] that inspections will be made on a regular basis. . . . Thus, the [person to be searched] knows that the inspections to which he is subject do not constitute discretionary acts by a government official but are conducted pursuant to statute. . . . [The statute] also sets forth the scope of the inspection and, accordingly, places the [person to be searched] on notice as to how to comply with the statute. In addition, it notifies the [person to be searched] as to who is authorized to conduct an inspection.

Finally, the "time, place, and scope" of the inspection is limited . . . to place appropriate restraints upon the discretion of the inspecting officers.

482 U.S. at 711 (citations omitted). As in *Burger*, the Policy in this case protects students from harassment or intimidation. The Policy's selection criteria assure students that school officials are acting within the narrow limits of their authority and without discretion.

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by a student drawing a number of names equivalent to 10% of the athletes playing sports that season while two adult witnesses observe. (J.A. 8, 30-31; Pl. Ex. 5 at 20).

The court of appeals, while acknowledging that the Policy restricts government discretion, appeared to give little weight to this factor in its analysis. 23 F.3d at 1522 (Pet. App. A at 37a). This Court should, as it has done in other cases upholding suspicionless searches, give significant weight to the Policy's control on government discretion. In this case, as in other cases upholding suspicionless searches, the prohibition of government discretion is severe.

#### ***7. The Policy involved a minimal intrusion on the students' privacy.***

An individual's expectation of privacy varies according to several factors, including the context in which a search takes place, e.g., whether the individual is at home, at work, at school, in a car or in jail. Expectations of privacy are inherently diminished by a past history of significant governmental regulation, and the individual's voluntary participation in the activity which gives rise to the search. The intrusion on the students' privacy caused by the Policy was minimal.

##### ***a. The school setting results in diminished expectations of privacy.***

James Acton's expectations of privacy are diminished because he was a student in a middle school. While students certainly have constitutional rights, those rights are often reduced in the school setting. As Justice Powell noted in his concurrence in *T.L.O.*, "[i]t is simply unrealistic to think that students have the same subjective expectation of privacy as the population generally." 469 U.S. at 348.

The process of educating young people is inherently invasive because of the unique relationship of students and teachers. Teachers do far more than instill factual knowledge. They are also responsible for discipline, safety, and the inculcation of values which are essential to citizenship, including respect for authority and the law. They

act as friend, authority figure, mentor, protector, moral leader, detective, prosecutor, judge and sometimes even jailer. "Of necessity, teachers have a degree of familiarity with, and authority over, their students that is unparalleled except perhaps in the relationship between parent and child." 469 U.S. at 348 (*Powell, J.*, concurring).

A teacher simply cannot do his or her job without constantly and pervasively intruding into privacy interests into which an employer, for instance, would never consider intruding. "[T]he preservation of order and a proper educational environment requires close supervision of schoolchildren as well as the enforcement of rules against conduct that would be perfectly permissible if undertaken by an adult." *T.L.O.*, 469 U.S. at 339. While many middle school students would enjoy adult-level privacy from intrusions by their teachers, no student realistically expects such privacy and no teacher could adequately educate students if such privacy were given.<sup>80</sup>

b. *The nature of interscholastic athletics further reduces a student's expectation of privacy.*

Students who participate in sports both reasonably and subjectively expect less privacy than students generally. Participation in interscholastic sports is a privilege. That privilege carries with it a significant risk of physical injury to participants, heightened responsibilities for safeguarding participating students, and heightened risks of liability for teachers, administrators and school districts.

<sup>80</sup> This lack of privacy is balanced, of course, by the teacher's customary role as custodian of the students' welfare. In his *T.L.O.* concurrence, Justice Powell discussed "[t]he special relationship between teacher and student" which "distinguishes the setting within which schoolchildren operate." 469 U.S. at 349. As Justice Powell noted, "there is a commonality of interests between teachers and their pupils. The attitude of the typical teacher is one of personal responsibility for the student's welfare as well as for his education." 469 U.S. at 350.

Yet parents and the community rightfully expect school officials to protect all students, including those who participate in interscholastic athletics, from risk of injury.

Students who seek the benefit of participation in interscholastic sports reasonably understand that such participation also involves certain obligations. Student athletes reasonably expect to be subject to rules, regulations and examinations designed to minimize the risk of physical injury. Student athletes also reasonably expect that such rules, regulations and examinations may intrude to some extent on their personal privacy.<sup>81</sup>

Student athletes in the Vernonia schools must have a physical examination at the beginning of each season. (R. 61-62; Pl.Ex. 2 at 30). That examination includes urinalysis. (J.A. 8). James Acton underwent such an examination, during which he voluntarily provided a urine sample. *Id.* Although it is not in the record, the Court can take judicial notice that such medical examinations of student athletes are routinely required in public schools across the nation. This Court can also take judicial notice of the fact that such examinations routinely involve relatively significant privacy invasions including, in the case of males, probing the students' genitals. Such physical exams are routinely required without any individualized suspicion that a particular student is physically unfit to play sports. Just as with the customs workers in *Von Raab*, whose "successful performance of their duties depends uniquely on their judgment and dexterity," these

<sup>81</sup> In recent years, student athletes have also become aware of the role drug testing plays in the sports world. As the Court explained in *Schall by Kross v. Tippecanoe County School Corp.*, 864 F.2d 1309, 1319 (7th Cir. 1988):

Perhaps even more demonstrative of the special characteristics of athletics is the high visibility and pervasiveness of drug testing in professional and collegiate athletics in this country and in the Olympic Games. The suspension and disqualification of prominent athletes on the basis of positive urinalysis results has been the subject of intense publicity all over the world.

students athletes "cannot reasonably expect to keep from [the District] personal information that bears directly on their fitness." 489 U.S. at 672.

Our society traditionally defers to local school officials and allows them to formulate rules to insure the safety of students. The Policy is such a rule. Its purpose, while more limited in scope, is substantially the same as that of a pre-season physical, i.e., to ensure the safety of the athlete. The testing is designed to detect whether student athletes are taking drugs and to deter from doing so. It is not a criminal search. It is not a punitive search. It is arguably not a disciplinary search because the consequences flowing from a positive drug test are so limited. Refusal to take a drug test does not result in criminal sanction or academic penalty. It results *only* in ineligibility for school-sponsored sports. (J.A. 9).

Drug testing is only one of many compromises of privacy made by students who decide to play sports. For example, athletic dress means locker rooms and locker rooms mean communal undress and lessened privacy expectations in the District schools. As in many schools, the Vernonia locker rooms are open spaces and the showers are communal. (J.A. 28, 48). At least one of the toilet stalls in the high school boys' locker room does not have a door. Thus, other students and teachers can observe student athletes completely unclothed using urinals and toilets. (R. 41, 125-127). In fact, during athletic events Vernonia athletes share an open stall with the public. (R. 125-129).

- c. *A student athlete's expectation of privacy is diminished even further because the Policy applies only to those who voluntarily engage in interscholastic athletics.*

James Acton's expectation of privacy is diminished beyond that of students in general because the drug test is required only of those who voluntarily engage in inter-

scholastic athletics. The voluntary nature of participation in sports diminishes the intrusion in two ways. First, students can avoid the intrusion by choosing not to participate in interscholastic sports. Second, by choosing to play such sports, students voluntarily give up significant personal privacy, and should reasonably expect to do so. Student athletes subject themselves to rules of conduct, grade-point requirements, dress and training rules, as well as to the rules of the Policy. (Pl. Ex. 2 at 30).

Like people who choose to conduct a business in a highly regulated field, students who volunteer to play sports know in advance they will be subject to drug testing. In *Skinner*, this Court noted:

[T]he expectations of privacy of covered employees are diminished by reason of their participation in an industry that is regulated pervasively to ensure safety, a goal dependent, in substantial part, on the health and fitness of covered employees.

489 U.S. at 627. Similarly, in *United States v. Biswell*, 406 U.S. 311 (1972), this Court stated that frequent unannounced inspections of a firearms dealer pursuant to federal law posed only limited threats to the dealer's limited expectations of privacy because the dealer chose to participate in a regulated business with knowledge that his records, firearms and ammunition would be subject to inspection. 406 U.S. at 316.

The Court also considered the public's ability to avoid the search in *United States v. Martinez-Fuerte*, 428 U.S. 543 (1976). In upholding the constitutionality under the Fourth Amendment of fixed border checkpoints, the Court noted that "[m]otorists using these highways are not taken by surprise as they know, or may obtain knowledge of, the location of the checkpoints and will not be stopped elsewhere." 428 U.S. at 559. In other words, they can choose to avoid the checkpoints. Similarly, in *Wyman v. James*, 400 U.S. 309 (1971), the Court re-

jected a welfare recipient's argument that she did not have to submit to a home visit by the welfare department in order to keep her benefits. Even though such refusal would have resulted in loss of welfare benefits, this Court concluded: "[t]he choice is entirely hers, and nothing of constitutional magnitude is involved." 400 U.S. at 324.

More recently, in *Von Raab*, the Court cited with approval lower court decisions upholding the search of airline passengers and their luggage, and in particular the statement by Judge Friendly in *United States v. Edwards*, 498 F.2d 496, 500 (2nd Cir. 1974), that:

"[T]he passenger has been given advance notice of his liability to such a search so that he can avoid it by choosing not to travel by air."

(Emphasis supplied.) The Court in *Von Raab* also noted that "[i]t is plain that certain forms of public employment may diminish privacy expectations even with respect to such personal searches." 489 U.S. at 671 (citations omitted).

Thus, this Court has found significantly diminished expectations of privacy in those who could avoid intrusions by giving up their livelihood, *United States v. Biswell*, their income, *Wyman v. James*, and their mode of travel, *United States v. Martinez-Fuerte*. At least the first two of those—livelihood and income—are clearly more important than school sports. The privacy interests of one such as James Acton, who could choose not to participate in interscholastic athletics, are equally diminished. This Court need not tie the hands of a school district faced with a situation like that presented here simply to avoid an intrusion which is exclusively incident to voluntary participation in sports.

d. *The Policy itself minimizes the intrusion.*

The mechanics of the Policy itself minimize the privacy intrusion. Monitors are of the same gender as the student.

Students are not subject to direct scrutiny while producing the sample. (R. 31-32; 138-139). Female students are not observed at all while producing the sample. (J.A. 42). Male students stand at a urinal and are observed, if at all, only from behind and at a distance. (J.A. 31-32; R. 138-139). Monitors testified that they do not routinely observe males at all while they are giving the sample. *Id.* These conditions are similar to those males routinely encounter in a public restroom. At no time are the genitals of either male or female students exposed to the monitor while giving the sample. (J.A. 28, 42; R. 124).

Nor does the Policy create any subjective intrusion. Students have notice of the mechanics and consequences of the tests when they choose to play sports. There is no "subjective intrusion" such as that which this Court found offensive in cases involving random car stops. *See, e.g., United States v. Ortiz*, 422 U.S. 891, 894-895 (1975). Finally, the test results themselves are highly reliable, virtually eliminating the possibility of false accusation. (Stip. Test. of R. Velandier at 5-7).

**E. The District's Drug Test Policy Satisfies the *New Jersey v. T.L.O.* "Reasonableness" Test Because It Was Reasonably Related in Scope to the Circumstances Which Justified the Interference in the First Place.**

The second prong of the reasonableness test in *New Jersey v. T.L.O.* requires that the search be reasonably related in scope to the circumstances which justified the interference in the first place. This requires a determination of whether "the measures adopted are reasonably related to the objectives of the search and not excessively intrusive in light of the age and sex of the student and the nature of the infraction." 469 U.S. at 342 (footnote omitted). In this case the Policy was reasonably related to the goal of deterring drug use and preventing athletic injuries and was not excessively intrusive.

1. *Drug testing by urinalysis is reasonably related to the District's objectives of deterring drug use and avoiding injury.*

The measures adopted by the District were reasonably related to the objectives of the search. A primary objective of the Policy was to deter athletes from using drugs and thereby protect them from physical injury. (J.A. 7, 27-28, 32). Deterrence is of particular importance when dealing with middle and high school students. Education and counseling alone usually will not cause a student who regularly uses drugs to stop, since such children are "in denial" and therefore need an "immediate" and "compelling" reason to stop. (Def. Ex. 106 at 60). This conclusion was borne out in the District when drug use continued after serious efforts at education and counseling. (J.A. 25-26, 34-35, 49-50, 65-66).

Drug testing "establishes an incentive for a person to not use" and has "a very powerful deterrent effect." (Def. Ex. 106 at 59-60). The risk of being identified as a drug user and being unable to participate in sports programs is "a very powerful deterrent to continued use" of drugs. (Def. Ex. 106 at 62).

Although the District only tested students who participated in interscholastic athletics, there was reason to conclude that deterring drug use by athletes would reduce drug use by the entire student body. Vernonia athletes were widely admired. (J.A. 20). Peer pressure is frequently the initial impetus for drug use by middle and high school students, especially when the peers are highly admired. (J.A. 68). Vernonia teachers and administrators were justifiably concerned that drug use by athletes would influence the other students.<sup>32</sup>

<sup>32</sup> See, e.g., *Schall by Kross v. Tippecanoe County Sch. Corp.*, 864 F.2d 1309, 1321 (7th Cir. 1988) *reh'g denied* (1989) ("Drug usage by this widely admired group [student athletes] is likely to affect the behavior of others and school officials are within their discretion in conducting a program specifically directed at athletes.")

This Court has repeatedly upheld suspicionless searches conducted for purposes of deterring prohibited conduct. In *Skinner* this Court stated that,

By ensuring that employees in safety-sensitive positions know they will be tested upon the occurrence of a triggering event, the timing of which no employee can predict with certainty, the regulations significantly increase the deterrent effect of the administrative penalties associated with the prohibited conduct, concomitantly increasing the likelihood that employees will forgo using drugs or alcohol while subject to being called for duty.

489 U.S. at 630 (citation omitted).<sup>33</sup> See also, *New York v. Burger*, 482 U.S. at 710 (frequent, unannounced inspections lacking warrant or suspicion were necessary in order to detect stolen cars and parts passing through automobile junkyards because, "surprise is crucial if the regulatory scheme aimed at remedying this major social problem is to function at all."); *United States v. Biswell*, 406 U.S. 311, 316 (unannounced, suspicionless searches of firearms dealers upheld because "[i]f inspection is to be a credible deterrent, unannounced, even frequent, inspections are essential."); and *Donovan v. Dewey*, 452 U.S. 594, 603 (unannounced, warrantless and suspicionless searches of a hard rock mine under the Federal Mine Safety and Health Act of 1977 upheld, again emphasizing the need for frequent, unannounced searches as a deterrent.) A random, suspicionless search can be justified, as it is in this case, by the need to deter prohibited conduct that is difficult to detect.

The legitimacy of the District's attempts to deter drug use is not in any way compromised by the relatively small

<sup>33</sup> The deterrent effect in this case was arguably higher than in *Skinner*, where tests were only performed after an accident, an event most workers would not go to work expecting. 489 U.S. at 634 (Stevens, J., concurring).

number of students who tested positive for drug use.<sup>34</sup> As this Court noted in *Von Raab*, "[t]he mere circumstance that all but a few of the employees tested are entirely innocent of wrongdoing does not impugn the program's validity." 489 U.S. at 674. In fact, as this Court pointed out,

[w]hen the Government's interest lies in deterring highly hazardous conduct, a low incidence of such conduct, far from impugning the validity of the scheme for implementing this interest, is more logically viewed as a hallmark of success.

489 U.S. at 675 n.3, citing *Bell v. Wolfish*, 441 U.S. 520, 559 (1979). Moreover, in this case, unlike in *Von Raab*, there was significant evidence of a substantial drug problem in the District at the time the Policy was implemented. 489 U.S. at 660.

Furthermore, the Policy appeared to work. As the court of appeals found:

The Policy contributed to reaching the desired goal. Every teacher who testified had noticed an improvement in discipline, a reduction in disciplinary referrals, and a decrease in drug use, and the glorification of drug culture since the Policy was implemented.

23 F.3d at 1522 (Pet. App. A at 34a).

## 2. *The Policy is not excessively intrusive.*

*T.L.O.* requires a determination of whether a search is excessively intrusive in light of the age and sex of the student and the nature of the infraction. 469 U.S. at 342. The seriousness of the infraction which prompted the District to initiate the Policy cannot be overstated. The District reasonably believed that many Vernonia students were possessing and using drugs, both during

<sup>34</sup> The superintendent estimated that, in the three years following the adoption of the Policy, two of the students randomly selected for urinalysis tested positive for drug use. (J.A. 38, 83).

class and while participating in school-sponsored sports. Such activity was unsafe and destructive of the educational environment. The infraction which gave rise to the search in *T.L.O.*—smoking in the school—pales in comparison to the use of illegal drugs by students.

Considering the seriousness of the suspected activity, the search involved here was not excessively intrusive. As is discussed in greater detail above, Vernonia athletes had diminished expectations of privacy by virtue of: (1) their status as students in a public school; (2) their voluntary participation in extracurricular sports; and (3) the other, similar privacy intrusions inherent in middle and high school sports and routinely accepted by student athletes. Moreover, tests were designed to avoid direct observation of the act of urination or removal of clothes. (R. 39-40, 138). Finally, results were highly accurate, kept confidential and only used to direct student athletes into drug treatment or to limit participation in athletics. 796 F.Supp. 1354, 1364 (Pet. App. B at 121a-122a; J.A. 9; Stip. Test of R. Velandar at 8).

The age of the students subject to testing also militates in favor of the Policy. Students of middle school age are particularly susceptible to drug abuse and addiction. (Def. Ex. 106 at 30-32, 42). Public school officials have a compelling interest in preventing drug abuse by and sports injuries to the children they are dedicated to protect.

**CONCLUSION**

The Policy satisfies both requirements of the *T.L.O.* reasonableness test. It also satisfies the requirements common to those cases in which this Court has upheld searches without individualized suspicion. Searches pursuant to the Policy are constitutionally reasonable. The District, therefore, respectfully requests that the judgment of the circuit court be reversed and the judgment of the district court in favor of the District be reinstated on the grounds that the District's Policy is not an unreasonable intrusion under the Fourth Amendment.

Respectfully submitted,

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